

No.DOPT-1779874829009
Government of India
Ministry of Personnel, Public Grievances & Pensions
Department of Personnel and Training
ESTT.(Estt. Reservation-II)

Kartavya Bhavan, New Delhi
Dated 26 May, 2026

OFFICE MEMORANDUM

Subject:- De-reservation of vacancies - Revised timelines for consideration of proposals by the Ministries/Departments-reg.

The undersigned is directed to state that that this Department has issued OM No. 36020/02/2007-Estt.(Res.), dated [07.12.2009](#) (**copy enclosed**) which contains detailed guidelines regarding de-reservation of reserved vacancies and prescribes a proforma for submission of proposals for de-reservation.

2. As per the existing instructions, there is a general ban on de-reservation of reserved vacancies in case of direct recruitment. However, powers have been delegated to the Ministries/Departments for de-reservation of vacancies falling in promotion quota. The above instructions dated 7.12.2009 inter-alia provide as under:-

De-reservation of Direct Recruitment Vacancies - As per the instructions, there is a general ban on de-reservation of reserved vacancies in case of direct recruitment. However, in rare and exceptional cases, where a Group A post cannot be allowed to remain vacant in public interest, the Administrative Ministry is required to consult National Commission for Scheduled Castes NCSC in case of vacancies reserved for SCs, National Commission for Scheduled Tribes NCST in case of vacancies reserved for STs and National Commission for Backward Classes NCBC in case of vacancies reserved for OBCs.

After obtaining the comments of the concerned Commissions, the administrative Ministry is required to submit a proposal to a Committee comprising of Secretaries of Ministry of Social Justice and Empowerment (MSJE), DoPT and concerned Administrative Ministry for consideration and recommendation and such recommendations are finally considered by the Minister in charge of DoPT and after approval, such DR vacancies are dereserved.

Dereservation of Promotion Vacancies - As per the above instructions, the power to accord approval for de-reservation of the reserved vacancies has been delegated to the administrative Ministries and Departments subject to conditions which inter-alia include that no candidate belonging to the reserved category is available within the zone of consideration or extended zone of consideration; and that the Liaison Officer has concurred in the proposal; and that the proposal has been approved by the Joint Secretary concerned.

These instructions further provide that before taking a decision to de-reserve the vacancy, the administrative Ministry/Department must submit the proposal in the prescribed proforma to DoPT and the concerned Commission (NCSC/NCST, as applicable) and wait for a period of at least two weeks for their comments. If no response is received within two weeks, the administrative Ministry/Department may presume that DoPT or the concerned National Commission, as the case may be, does not have any comments to offer, and may proceed to take a decision to de-reserve the vacancies.

3. The aforesaid instructions relating to dereservation of promotion vacancies have been reviewed in consultation with NCSC, NCST and MSJE. In partial modification of the OM 36020/2/2007-Estt(Res) dated 7.12.2009, it has been decided that before taking a decision to de-reserve a promotion vacancy under the delegated powers, the administrative Ministry / Department, after sending the proposal in the prescribed proforma to DoPT and to the concerned National Commission - NCSC in respect of vacancies reserved for SCs and to NCST in respect of vacancies reserved for STs, **shall wait for a period of at least one month for the comments of the DoPT and the concerned National Commission.**

4. If no comments are received from DoPT or the concerned Commission within one month, only then the administrative Ministry / Department may take a decision regarding de-reservation of the said promotion vacancy. In case the Ministry / Department receives comments from the DOPT or the concerned Commission within **one month**, the comments so received shall be considered while taking a decision in the matter. The remaining conditions and provisions contained in the OM 36020/2/2007-Estt(Res) dated 7.12.2009 shall remain unchanged.

5. All the Ministries/ Departments etc. are requested to bring the revised time lines as per the above instructions to the notice of all concerned.

6. This issues with the approval of competent authority.

Encl: a/a

(Sign of Authority)

Charu Vijay

Deputy Secretary to the Government of India

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To

1. The Secretaries of all the Ministries/Departments
2. Department of Financial Services, New Delhi.
3. Department of Public Enterprises, New Delhi.
4. Railway Board, Ministry of Railways, Rail Bhawan, New Delhi.
5. The Secretary, National Commission For Scheduled Castes, 5th Floor, Lok Nayak Bhawan, Khan Market, New Delhi-110003.
6. The Secretary, National Commission for Scheduled Tribes, 6th Floor, B Wing, Lok Nayak Bhawan, Khan Market, New Delhi- 110003.
7. The Secretary, National Commission for Backward Classes, Trikot - 1, Bhikaji Cama Place New Delhi - 110 066.
8. Office of Comptroller and Auditor General of India, 10, Bahadurshah Zafar Marg, New Delhi.
